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States and Union Territories (Part-I: Article 1-4)

- **India as a Union of States:** Article 1 refers to India that is Bharat as a 'Union of States'.
- **Schedule 1:** Lists the states and their territorial jurisdiction.
- **Territory Categories:**
 - **States:** 28 states (2024), administered in a federal system mentioned in the 7th Schedule.
 - **Union Territories (UTs):** 8 UTs (2024), directly administered by the Central government.
 - **Acquired Territories:** Also directly administered.
- **Former UTs:** States like Himachal Pradesh, Manipur, and Goa were formerly UTs.
- **Need for UTs:** Address political, administrative, cultural, and strategic considerations.
- **UTs with High Court:** Delhi and the common High Court for Jammu & Kashmir and Ladakh.

Constitutional Provisions

- **Article 1:** Defines the **name** and **territory** of the Union of India.
- **Article 2:** Governs the **admission** or **establishment** of new states.
- **Article 2A (Repealed):** Previously associated Sikkim with the Union.
- **Article 3:** Outlines the **formation of new states** and alterations of **areas, boundaries, or names** of existing states.
 - **States:** A bill for changes requires **Presidential recommendation** after consulting the **state legislature** for views, though the President/Parliament is not bound by these views.
 - **Union Territories (UTs):** No requirement to consult the legislature; Parliament can act independently.
- **Article 4:** Laws made under Articles 2 and 3 to provide for the **amendment of the First and the Fourth Schedules** and supplemental, incidental and consequential matters.
 - Declares that laws made under Article 2 and Article 3 are **not to be considered as amendments of the Constitution under Article 368**.

IMPORTANT CONCEPTS REGARDING STATES AND UTs

- **Union vs. Federation:** "Union of States" is used over "Federation of States" because:
 - The Indian Federation is not based on state agreements like in the U.S.
 - States cannot **secede**.
- **Indestructible Union:** India is "an **indestructible union of destructible states**," while the U.S. is "an **indestructible union of indestructible states**." The U.S. requires state consent to form new states or alter borders.
- **Parliamentary Authority:** **Parliament** can create new states or alter boundaries without consent, so **territorial integrity** isn't guaranteed.
- **Territorial Scope:** "Territory of India" includes **states, Union Territories, and future territories**, while "Union of India" includes only states.
- The Constitution does not contain any separate provisions for the administration of acquired territories.

EXCHANGE OF TERRITORIES

- **Parliament's Power:** Under **Article 3**, Parliament can reduce a state's area but **cannot** cede territory to a foreign nation, as ruled by the **Supreme Court** in **1960** regarding **Berubari Union**.
- **Territorial Cession:** Territory can only be ceded to foreign states via a constitutional amendment (e.g., **100th Amendment Act, 2015** dealt with the **transfer of enclaves between India and Bangladesh**).
 - As a sovereign state, India has acquired various foreign territories such as **Dadra and Nagar Haveli, Goa, Daman and Diu, Puducherry, and Sikkim** since the commencement of the Constitution
- Transferring territory requires a **constitutional amendment** under **Article 368**, enacted through the **9th Constitutional Amendment Act of 1960** for Berubari.
- **Boundary Disputes:** In **1969**, the Supreme Court stated that resolving boundary disputes does not need a constitutional amendment and can be done via **executive action**.
- **Exchange with Bangladesh**
 - **Radcliffe Commission (1947):** Demarcated boundaries at independence, neglecting small **enclaves**.

- **Enclaves:** Known as **Chitmahals**, these areas were discussed during the Bagge award of 1950 and the **Nehru-Noon Agreement of 1958**.
- **Enclave Details:** 111 Indian enclaves in Bangladesh; 51 Bangladeshi enclaves in India.

CHANGE OF NAMES OF STATES AND UNION TERRITORIES

- All name changes were executed under **Article 3** of the Constitution by **Parliament**.
 - It includes **Uttar Pradesh (United Provinces, 1950), Tamil Nadu (Formerly Madras, 1969);**
 - **Karnataka:** Formerly **Mysore**, renamed in **1973**,
 - **Lakshadweep:** Formerly **Laccadive, Minicoy, and Amindivi Islands**,
 - **National Capital Territory of Delhi:** Redesignated in **1992** under the **69th Constitutional Amendment Act**,
 - **Uttarakhand:** Formerly **Uttaranchal**, renamed in **2006**,
 - **Puducherry:** Formerly **Pondicherry**, renamed in **2006** and **Odisha:** Formerly **Orissa**, renamed in **2011**.

VARIOUS COMMISSIONS IN THE REORGANISATION OF STATES AND UTs

- **DHAR Commission** (Dec 1948): Recommended state reorganisation based on **administrative convenience**, not language.
- **JVP Committee** (Dec 1948 - Apr 1949): Formally rejected language as the basis for state reorganisation; members included **Jawaharlal Nehru, Vallabhbhai Patel and Pattabhi Sitaramayya**. In October 1953, the Government of India was forced to create the **first linguistic state**, known as **Andhra State**, by separating the Telugu-speaking areas from the Madras state.
- **Fazl Ali Commission** (Dec 1953 - Sept 1955): Accepted language as a basis but rejected 'one language-one state' theory. Its recommendations led to the **States Reorganisation Act (1956)**, creating **14 states** and **6 UTs** on Nov 1, 1956. **Members** of commission: **Fazl Ali (Chairman), K.M. Panikkar and H.N. Kunzru**

States and UTs in 1956	States and UTs (Post-1956)
• States: Andhra Pradesh, Assam, Bihar, Bombay, Jammu and Kashmir, Kerala, Madhya Pradesh, Madras, Mysore, Orissa, Punjab, Rajasthan, Uttar Pradesh, West Bengal. • Union Territories: Andaman and Nicobar Islands, Delhi, Himachal Pradesh, Laccadive Islands, Manipur, Tripura.	• 1960: Bifurcation of Maharashtra and Gujarat. • 1961: UT: Creation of Dadra and Nagar Haveli (10th Amendment). • 1962: UTs: Goa, Daman, Diu (12th Amendment); Puducherry (14th Amendment). • 1963: Nagaland. • 1971: Himachal Pradesh. • 1987: Mizoram, Arunachal Pradesh, Goa. • 2000: Chhattisgarh, Uttarakhand, Jharkhand; • 2014: Telangana. • 2019: Two UTs: J&K and Ladakh.

COMPARISON BETWEEN STATES AND UNION TERRITORIES

States	Union Territories
• The relationship with the centre is Federal. • Power distribution with the centre. • Have autonomy. • Uniformity in their administrative set-up. • The Governor is the constitutional head of state. • Parliament cannot make laws on the subjects of state lists in relation to states except under extraordinary circumstances.	• Relationships are Unitary. • Under the direct control and administration of the centre. • They do not have autonomy. • There is no uniformity in their administrative setup. • Executive head (agent of the president): Administrator, Lt. Governor, Chief Commissioner. • Parliament can make law on any subject of the three lists in relation to union territories.

- **Jammu and Kashmir Reorganisation Act, 2019:** In 2019, **Article 370** was abolished, ending Jammu and Kashmir's special status. The **J&K Reorganisation Act** created two Union Territories - **UT of Jammu & Kashmir (with Legislature)**: All districts except Kargil and Leh & **UT of Ladakh (without Legislature)**: Kargil and Leh districts. (Under Article-3)
- **Dadra and Nagar Haveli and Daman and Diu (Merger of UTs) Act, 2019:** Merged two UTs into one.

ADMINISTRATION OF UNION TERRITORIES (ARTICLE 239-241 IN PART VIII)

- **Articles:** Governed by **Articles 239-241** in Part VIII of the Constitution.
- **Administered by:** The **President** via an **Administrator**, an agent, not head of state.
- **Lieutenant Governor (LG):** Appointed for **Delhi, Puducherry, Andaman and Nicobar, Jammu and Kashmir, and Ladakh**.
- **Administrators** for **Chandigarh, Dadra and Nagar Haveli, Daman and Diu, and Lakshadweep**.
- **Union Territories with Legislative Assembly and Council of Ministers headed by the Chief Minister:** Puducherry, Delhi, Jammu and Kashmir.
- **Advisory Committees:** **Home Ministers Advisory Committee (HMAC)** for UTs without legislature; chaired by the **Union Home Minister**. **Administrative Advisory Committee (AAC)** chaired by the Administrator of UT.
- **Presidential Authority:** The President can make regulations for **Andaman and Nicobar Islands, Lakshadweep, Dadra and Nagar Haveli, and Daman and Diu** with the same effect as parliamentary acts.
- **High Court Jurisdictions for Union Territories**
 - **Parliament Authority:** Can establish a High Court for a territory or assign it to a nearby state's High Court.
 - **Delhi:** Is the only Union territory with its own **High Court** since **1966**.
 - **Others include** Dadra and Nagar Haveli, Daman and Diu under Bombay High Court, Andaman and Nicobar Islands Under Calcutta High Court, Chandigarh under Punjab and Haryana High Court; Lakshadweep under Kerala High Court; Puducherry under Madras High Court ; Jammu and Kashmir & Ladakh: Share the Jammu and Kashmir & Ladakh High Court.

DIFFERENCE BETWEEN POWERS OF UTs WITH LEGISLATIVE ASSEMBLIES

Feature	Delhi	Puducherry	Jammu & Kashmir (Post-2019)
Constitutional Status	Article 239AA	Article 239A	J&K Reorganisation Act, 2019
Seats in Assembly	70	33	90 (Total 114; 24-PoK)
Maximum number of ministers in CoM	7	6	9
Legislative Powers	Can legislate on all subjects except public order, police, and land	Can legislate on subjects in State and Concurrent Lists	Can legislate on State List except public order, police; also Concurrent List
Reserved Subjects	Public order, police, land	Follows the general State List and Concurrent List	Public order, police, bureaucracy (All India Services), Anti-Corruption Bureau
Role of Lieutenant Governor	Refers disagreements to President; control over services (bureaucracy); final decision on reserved matters	LG less intrusive but refers disputes to President	Final decision on discretion in key areas; extensive powers in governance, including judicial functions
Financial Bills	Requires LG recommendation for introduction	Requires LG assent for certain bills	Requires LG recommendation before introduction
Anti-Corruption Bureau (ACB)	Restricted to Delhi bureaucrats; Ministry of Home Affairs consent needed to prosecute central officers	No specific provisions	Under LG control
Unique Features	Services brought under LG's control through 2023 legislation; ACB jurisdiction limited	Similar to state governance with central oversight	LG appoints Advocate General, controls prosecutions; financial provisions tightly controlled by LG

